

WPCRL/117/2019 on 22 January, 2020

Author: S.K.Sahoo

Bench: S.K.Sahoo

W.P.(CRL) No. 117 of 2019

04. 22.01.2020

Heard learned counsel for the petitioner and learned Addl. Government Advocate.

On being mentioned by the Government counsel on 21.1.2020 that the children have been rescued by the Police the matter was listed and taken up. The Government counsel submitted that without any Court's order the children was erroneously rescued by the police and beg unconditional apology.

By way of this habeas corpus application petitioner has prayed for a direction to opposite party Nos. 1 to 5 to recover his children from the custody of opposite party Nos. 6 and 7 and produce them before this Court.

Opposite party No.7-Jyoshanarani Mohanty along with her two children i.e. Sujit Kumar Mohanty aged about 13 years and Samikshya Priyadarsini Mohanty aged about 11 years appeared in person through I.I.C, Biridi Police Station without any Court's order.

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The materials available on record reveals that parties have approached learned Judge, Family Court, Cuttack in Civil Proceeding No. 254 of 2015 for a decree of divorce under Section 13(1) of the Hindu Marriage Act, 1955. Accordingly the said Court passed a decree of dissolution of marriage by judgment and decree dated 17.9.2019 on contest. However the parties have not raised the question of custody of the children in the said proceeding nor they have filed any application for the said purpose before the appropriate forum.

While the matter stood thus on 3rd December,

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2019 the present application was filed for habeas corpus for rescue of the children from the custody of opposite party Nos. 6 and 7. Opposite party No.7 is the mother and natural guardian of those two children. Both the children as well as the opposite party No.7 appeared in person being produced by opposite party No.4. Since they have appeared in person

Court has interacted with them and children are happy with their mother. The children are with the natural guardian as such the application for habeas corpus is not maintainable. However it is open to the petitioner to approach the appropriate forum, if he is so advised, for visiting right/custody of the children in such event his application shall be considered in accordance with the law after giving opportunity of hearing to the parties. The opposite party No.7 appeared along with her two children are free to go. The WPCRL is accordingly disposed of.

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S. Panda, Acting Chief Justice S.K.Sahoo, J